

Working Paper 1.2

United Nations General Assembly

Deliberating on a Binding International Instrument Regulating
Lethal Autonomous Weapons Systems

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29 delegations across nine regions | 21 operative clauses

Working Paper

THE GENERAL ASSEMBLY,

Recalling its resolutions 78/241 of 22 December 2023, 79/62 of 2 December 2024 and 80/57 of 1 December 2025 on lethal autonomous weapons systems,

Noting the joint statement delivered on behalf of forty-two States in September 2025 affirming readiness to negotiate a legally binding instrument on autonomous weapons systems,

Recalling further the eleven Guiding Principles endorsed by the High Contracting Parties to the Convention on Certain Conventional Weapons in 2019, and in particular Guiding Principle (b), affirming that accountability for the use of force cannot be transferred to machines,

Recalling that binding humanitarian instruments concerning specific categories of weapons have previously been concluded through international cooperation, including the Convention on Cluster Munitions concluded at Dublin in 2008, thereby demonstrating the feasibility of negotiating a legally binding instrument on this subject,

Guided by the principles of humanity and the dictates of public conscience as reflected in the Martens Clause,

Recognising that the increasing autonomy of weapons systems creates complex challenges in attributing responsibility, and that such systems operating in complex and rapidly changing conflict environments may misinterpret operational context or human intent,

Concerned by the risk that such systems, their components and enabling technologies may be diverted to or acquired by terrorist organisations and other non-State actors,

Concerned further that the deployment of such systems by forces within multinational coalitions operating under differing national standards of human control presents an unaddressed risk to unity of command,

Aware that decisions to deploy such systems are in most States taken without legislative scrutiny or public knowledge, notwithstanding the gravity of delegating the use of lethal force to machines,

Bearing in mind the particular vulnerability of States lacking the technical capacity to detect, verify or defend against such systems,

Emphasising the legitimate security interests of all States and the importance of ensuring that measures adopted do not impede peaceful applications of autonomous and artificial-intelligence technologies,

OPERATIVE CLAUSES

I. Definition and scope

1. *Adopts*, for the purposes of this framework, the term “autonomous weapons system” (AWS) to mean a weapons system that, once activated, can identify, select and apply force to a target without further intervention by a human operator, and further affirms that:

a. autonomy exists on a spectrum, and a system falls within this framework where the human operator cannot exercise judgement over the specific target and the specific application of force at the time of engagement;

b. the classification of a system rests on its demonstrated behaviour in the environment in which it is deployed, and not on the terminology applied to it by the State deploying it;

c. a system does not fall outside this framework by reason only of a human authorising its activation, where that human exercises no judgement over the targets subsequently engaged;

2. *Affirms* that this framework does not extend to systems that identify and engage incoming munitions, projectiles, vehicles or other materiel rather than human beings, and that nothing herein restricts the development or deployment of such systems;

II. The two-tier framework

3. *Urges* the development of an international framework structured in two tiers, and *calls upon* Member States to prohibit, under the first tier, autonomous weapons systems which by reason of their design cannot be used in compliance with international humanitarian law, including:

a. systems that cannot be subject to meaningful human control;

b. systems designed or used to select and apply force against human targets without human judgement at the moment of engagement;

c. systems whose effects cannot be reliably predicted, limited or explained;

4. Recommends that all systems not prohibited under the first tier be permitted only where binding conditions secure their lawful use — including legal review against shared international criteria prior to deployment and following any modification affecting system behaviour, continuous human capacity to intervene or deactivate at any point during an engagement, and the recording of engagement data sufficient to reconstruct any use of force — and *encourages* periodic review of the placement of systems within each tier, informed by verified testing and operational data, so that the distinction reflects demonstrated behaviour rather than technological labels;

III. Human control and system reliability

5. Affirms that autonomous weapons systems must not operate without meaningful human control; that such systems must be designed, developed and deployed under such control at all critical stages and particularly in target selection and engagement; and that human authorities must retain the capacity to understand, supervise and, where necessary, deactivate them, consistent with the principles of distinction, proportionality and precaution;

6. Calls upon Member States to develop rigorous testing and validation frameworks and internationally recognised technical standards, ensuring such systems function in a safe, reliable, predictable and transparent manner and can correctly interpret operational context, and *encourages* operational safeguards enabling timely human intervention whenever a system demonstrates uncertainty, inconsistent behaviour or potential misinterpretation of human intent;

IV. Weapons reviews and legal compliance

7. Encourages Member States to strengthen national legal review mechanisms pursuant to Article 36 of Additional Protocol I to the Geneva Conventions, which requires States to determine whether a new weapon would be prohibited by international law, including by:

a. assessing compliance with the principles of distinction, proportionality, precaution and military necessity, and incorporating legal, technical, military and ethical expertise into national review processes;

b. sharing non-sensitive review methodologies and reporting periodically on the conduct of such reviews, so that a conclusion reached by one State can be understood by others;

c. reviewing all data sets and algorithms used to train, validate or operate such systems for bias capable of producing discriminatory or indiscriminate targeting, consistent with the prohibition of adverse distinction under customary international humanitarian law and Article 85(4)(c) of Additional Protocol I, which classifies indiscriminate attacks affecting the civilian population as grave breaches;

V. Responsibility and attribution

8. Affirms that the development, deployment or use of autonomous weapons systems does not relieve States or individuals of responsibility for conduct attributable to them under international law, that autonomous operation does not constitute an independent legal status capable of bearing such responsibility, and *calls upon* Member States to establish clear national chains of responsibility extending across the entire lifecycle of a system from development and programming through deployment and use;

9. Recommends the establishment of an **International Algorithmic Attribution Review Mechanism (IAARM)** to facilitate impartial, evidence-based assessment of incidents with cross-border implications; *encourages* Member States to designate **National Algorithmic Attribution Units (NAAUs)** to conduct preliminary assessments and preserve technical evidence within their jurisdiction; and *calls upon* Member States to apply a **Multi-Layer Attribution Assessment Framework**, assessing responsibility by reference to State authorisation, command decisions, human oversight and system design, so that attribution rests upon the contributing conduct of relevant actors rather than solely upon the system's resulting action;

10. Requests Member States to establish procedures to record, report and investigate any incident in which the use of such systems results in civilian casualties or damage to civilian objects — including secure preservation of deployment authorisation, system configuration, mission parameters and human interventions, with appropriate safeguards for classified information — to take corrective measures including suspension of implicated systems, and *recommends* that any future legally binding instrument provide for a Conference of States Parties mandated to review national implementation and for periodic review in light of technological developments;

VI. Proliferation, cybersecurity and technology transfer

11. Calls upon Member States to strengthen export-control regimes through enhanced end-user certification, supply-chain due diligence, post-delivery verification and coordinated customs cooperation to prevent the illicit production, trafficking, diversion and unauthorised transfer of such systems, their critical components and enabling dual-use technologies, and to strengthen domestic legislative frameworks criminalising their unauthorised development,

acquisition, transfer, financing or use by terrorist organisations and other non-State actors;

12. *Urges* Member States to adopt rigorous cybersecurity standards and testing procedures prior to deployment, addressing vulnerability to hacking, data manipulation and technical failure, consistent with Guiding Principle (f) endorsed by the High Contracting Parties in 2019, which requires States to consider non-physical safeguards including cyber-security when developing or acquiring such systems;

13. *Recommends* the establishment of a voluntary registry under United Nations auspices, drawing on the precedent of the United Nations Register of Conventional Arms established in 1991, through which Member States may exchange non-classified information on operational parameters and testing standards with verification remaining non-intrusive, and *calls upon* Member States to ensure that measures adopted are not used to restrict developing and middle-income States from accessing dual-use hardware, semiconductors or machine-learning infrastructure, consistent with the principle reflected in Article X of the Biological Weapons Convention, which safeguards participation in the exchange of scientific and technological information for peaceful purposes;

VII. Deployment, environment and coalition operations

14. *Urges* Member States to restrict the use of such systems where civilians and civilian objects are present or their presence cannot be reliably excluded, to exercise particular restraint in maritime domains, contested waters and other strategically sensitive regions given the heightened risk of misidentification of civilian vessels and disruption of critical maritime infrastructure, and *encourages* voluntary regional forums for dialogue on national policies, deployment practices and risk assessment, so as to reduce the likelihood of miscalculation arising from systems operating at machine speed;

15. *Recommends* that Member States participating in multinational operations establish common minimum standards of human control prior to deployment, designate clear command responsibility for the use of such systems, and agree common rules of engagement in advance, so that authority to employ such systems and accountability for their effects remain identifiable irrespective of which contributing State supplied a given asset;

VIII. Civilian protection

16. *Reaffirms* the obligation of all parties to armed conflict to ensure that the deployment of such systems complies fully with applicable international humanitarian law, and *calls upon* Member States to strengthen civilian-harm prevention and monitoring mechanisms — including early-warning systems, risk assessments and assessment of foreseeable civilian consequences before and during operations — and to enhance cooperation through the United Nations and regional organisations for long-term civilian protection and recovery, including the protection of children and displaced persons;

IX. Oversight, capacity and equitable participation

17. *Calls upon* Member States to ensure appropriate legislative oversight of national policy on the development, acquisition and deployment of autonomous weapons systems, including the presentation of ethics and impact assessments to legislative bodies prior to procurement, periodic reporting on inventory, testing and legal compliance, and the publication of non-sensitive summaries of national policy;

18. *Calls upon* Member States and international organisations to strengthen the capacity of developing States to assess, monitor and govern such systems through technical training, legal expertise and institutional development, to ensure that States which will never manufacture such systems are not excluded from the negotiation of rules governing them, and further:

a. *recognises* the particular vulnerability of small island developing States, which possess neither the capacity to detect such systems operating within their territory or maritime zones nor the means to defend against them, and *recalls* the Declaration of the Caribbean Community of 2023 calling for a legally binding instrument;

b. *urges* Member States to refrain from deploying such systems within the exclusive economic zones and territorial waters of States lacking the capacity to detect or verify such deployment;

X. Border and migration control

19. *Calls upon* Member States to ensure that autonomous weapons systems used in border or migration control remain under meaningful human control and are not permitted to independently determine the use of lethal force against migrants, refugees, asylum seekers or other civilians on the basis of automated identification alone, and *urges* clear safeguards including human review of system-generated decisions, rigorous testing prior to deployment, capacity to promptly suspend a system behaving unexpectedly, and procedures for reporting and investigating incidents of mistaken identification or unintended harm;

XI. Process

20. *Encourages* Member States, pending the conclusion of an international instrument, to declare unilateral moratoriums on the export of autonomous weapons systems capable of selecting and engaging human targets, and to deposit such declarations with the Secretary-General;

21. *Affirms* the need for inclusive multilateral engagement through structured dialogue under the United Nations framework, expanded confidence-building measures and the exchange of best practices, with the objective of bridging divides between regulatory-focused and innovation-driven States, and *recommends* that the Seventh Review Conference of the Convention on Certain Conventional Weapons, convening in November 2026, adopt a mandate for the negotiation of a legally binding instrument.